

they may thereby acquire a qualification, the deed is unimpeachable (*d*).

23. **Immoral trusts.**—Trusts adverse to the foundation of all *religion* and subversive of all *moral*ity are, of course, void, and not enforceable by the Court (*e*).

[24. **Superstitious purposes.**—Trusts for superstitious purposes, as for saying masses or requiems for the souls of the dead, are void (*f*).]

25. **Consequences to the settlor of creating a trust with an unlawful purpose.**—Where a trust is created for an unlawful and fraudulent purpose, the Court will neither enforce the trust in favour of the parties intended to be benefited, nor will assist the settlor to recover the estate (*g*).

[*106] * 26. **Property settled with an unlawful purpose may be recovered by persons claiming under the settlor.**—But a distinction was taken by Lord Eldon between a bill filed by the author of the fraud himself, and by a person taking through him, but not a party to the fraud (*a*), and this distinction is supported by other authority (*b*). And the settlor himself may take proceedings for recovering the property, where the illegal trust failed to take effect, so that no

(*d*) *Thornley v. Aspland*, 2 C. B. 160; *Alexander v. Newman*, 2 C. B. 122; *May v. May*, 33 Beav. 81; and see *Childers v. Childers*, 3 K. & J. 310; 1 De G. & J. 482; *Ashworth v. Hopper*, 1 C. P. D. 178.

(*e*) See *Thornton v. Howe*, 31 Beav. 14.

[(*f*) *West v. Shuttleworth*, 2 My. & K. 684; *Heath v. Chapman*, 2 Dr. 417; *Re Blundell's Trusts*, 30 Beav. 360; *Re Fleetwood*, 15 Ch. D. 594; *Dorrian v. Gilmore*, 15 L. R. Ir. 69; and see *Re Michel's Trusts*, 28 Beav. 39.]

(*g*) *Cottingham v. Fletcher*, 2 Atk. 555; see Lord Eldon's remarks in *Muckleston v. Brown*, 6 Ves. 68; and see *Chaplin v. Chaplin*, 3 P. W. 233; *Hamilton v. Ball*, 2 Ir. Eq. Rep. 191; *Groves v. Groves*, 3 Y. & Jer. 163; *Ottley v. Browne*, 1 B. & B. 360; *Davies v. Otty* (No. 2), 35 Beav. 208;

Haigh v. Kaye, 7 L. R. Ch. App. 473; *Barton v. Muir*, 6 L. R. P. C. 134; [*Re Great Berlin Steamboat Company*, 28 Ch. D. 616.] In *Wilkinson v. Wilkinson*, 1 Y. & C. Ch. Ca. 657, the words "*all other the children he might thereafter have by her*," were probably held to mean legitimate children in case the settlor married the person named, who, it is presumed, had died before the suit.

(*a*) *Muckleston v. Brown*, 6 Ves. 68.

(*b*) *Matthew v. Hanbury*, 2 Vern. 187; *Brackenbury v. Brackenbury*, 2 J. & W. 391; *Joy v. Campbell*, 1 Sch. & Lef. 328, see 335, 339; *Miles v. Durnford*, 2 Mac. & G. 643; and see *Phillpotts v. Phillpotts*, 10 C. B. 85; *Groves v. Groves*, 3 Y. & Jer. 163; *Childers v. Childers*, 3 K. & J. 310, 1 De G. & Jon. 482. See a classification of the cases in reference to co-